

Mohd. Mubeen Alias Hazi Mohammad Mubeen v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 November 2019 · WRIT - C No. 37461 of 2019 · **Writ allowed; final assessment quashed and remanded for speaking order.**

HEADNOTE

A final assessment passed without considering the consumer's objection already on record, in disregard of the U.P. Electricity Supply Code, 2005, is a manifest illegality and is liable to be quashed. The High Court allowed the writ, quashed the final assessment dated 8 April 2019, and directed the Executive Engineer to pass a speaking and reasoned final order after considering the petitioner's objections and evidence. Liberty was reserved to appeal under section 127 of the Electricity Act, 2003 against the fresh order. Non-appearance on the date fixed would revive the quashed assessment automatically.

FACTUAL SUMMARY

Mohd. Mubeen challenged before the Allahabad High Court a provisional assessment dated 23 February 2019 and a final assessment dated 8 April 2019 issued by the electricity department. He had objected to the provisional assessment on 11 March 2019. The Executive Engineer nonetheless passed the final assessment twenty-seven days later without considering that objection, which was already on the record, allegedly in disregard of the U.P. Electricity Supply Code, 2005.

REUSABLE CONSTRUCTIONS

1. A final assessment passed without considering a consumer's objection already on record overlooks the U.P. Electricity Supply Code, 2005, and is a manifest illegality liable to be quashed. ¶ 2-3
2. After such quashing, the assessing officer must pass a speaking and reasoned final order after considering the consumer's objections and any evidence adduced; if the consumer fails to appear on the date fixed, the quashed assessment stands revived. ¶ 3

HOLDING-UNITS

HOLDING-UNIT · UP-2005

final assessment without considering recorded objection

HOLDING

Where the consumer's objection to a provisional assessment is already on record, a final assessment passed without considering that objection overlooks the U.P. Electricity Supply Code, 2005, and is a manifest illegality. The final assessment dated 8 April 2019 is quashed. The consumer is directed to appear before the Executive Engineer with the objection and evidence; the Executive Engineer shall thereafter pass a speaking and reasoned final order after considering the objections, within two weeks. If the consumer does not appear on the date fixed, the quashed order stands revived automatically. If still aggrieved by the fresh final order, an appeal under section 127 of the Electricity Act, 2003 remains open in accordance with law. ¶ 2-3

FLAG clause unspecified; the Court referred only to the U.P. Electricity Supply Code, 2005 generally, without naming a clause

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

A final assessment passed without considering the consumer's objection already on record, in disregard of the U.P. Electricity Supply Code, 2005, is a manifest illegality and is liable to be quashed.. ¶ 2-3

NOT DECIDED — MERITS OF THE ASSESSMENT AND OF THE CONSUMER'S OBJECTION

Remanded to the Executive Engineer for a speaking order after hearing; the Court did not examine the assessment on merits. ¶ 3

NOT DECIDED — CHALLENGE TO THE PROVISIONAL ASSESSMENT DATED 23.2.2019

The writ sought quashing of both the provisional and final assessments; only the final assessment dated 8.4.2019 was quashed. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.